

ALITO, J., dissenting

Some years ago the British Parliament enacted a law allowing non-unanimous verdicts.⁴ Was Parliament under the sway of the Klan? The Constitution of Puerto Rico permits non-unanimous verdicts.⁵ Were the framers of that Constitution racists? Non-unanimous verdicts were once advocated by the American Law Institute and the American Bar Association.⁶ Was their aim to promote white supremacy? And how about the prominent scholars who have taken the same position?⁷ Racists all? Of course not. So all the talk about the Klan, etc., is entirely out of place.⁸ We

unanimity is demanded, the work of preventing this must be done in large measure by more intensive *voir dire* and more aggressive use of challenges for cause and peremptory challenges. See Amar, Reinventing Juries: Ten Suggested Reforms, 28 U. C. D. L. Rev. 1169, 1189–1191 (1995).

⁴Juries Act 1974, ch. 23, § 17 (replacing Criminal Justice Act 1967, ch. 80, § 13). See Lloyd-Bostock & Thomas, Decline of the “Little Parliament”: Juries and Jury Reform in England and Wales, 62 Law & Contemp. Prob. 7, 36 (Spring 1999); see also Leib, A Comparison of Criminal Jury Decision Rules in Democratic Countries, 5 Ohio St. J. Crim. L. 629, 642 (2008).

⁵P. R. Const., Art. II, § 11 (establishing “verdict by a majority vote” of at least 9 of 12 jurors).

⁶ALI, Code of Criminal Procedure § 355 (1930); *id.*, Comment, at 1027; ABA Project on Standards for Criminal Justice Compilation, Trial by Jury 318 (1974).

⁷See, e.g., Amar, *supra*, at 1189–1191; Holland, Improving Criminal Jury Verdicts: Learning From the Court-Martial, 97 J. Crim. L. & C. 101, 125–141 (2006); Leib, Supermajoritarianism and the American Criminal Jury, 33 Hastings Const. L. Q. 141, 142 (2006).

⁸The majority’s defense of its reliance on the original reasons for the adoption of the Louisiana and Oregon rules is incoherent. On the one hand, it asks: “[I]f the Sixth Amendment calls on judges to assess the functional benefits of jury rules, as the *Apodaca* plurality suggested, how can that analysis proceed to ignore the very functions those rules were adopted to serve?” *Ante*, at 99, n. 44. But three sentences later it answers its own question when it observes that “a jurisdiction adopting a nonunanimous jury rule for benign reasons would still violate the Sixth Amendment.” *Ibid.*

JUSTICE KAVANAUGH’s defense, see *ante*, at 127–129 (opinion concurring in part), is essentially the same. After reiterating the history recounted by the majority, he eventually acknowledges that there are “neutral and